

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Miriam Lynch	Team: Squad #05	CCRB Case #: 201410256	☐ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Sunday, 10/05/2014 8:00 PM	Location of Incident: Jamaica Avenue and Parsons Boulevard	18 Mo. SOL 4/5/2016	Precinct: 103
Date/Time CV Reported Mon, 10/06/2014 5:00 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Mon, 10/06/2014 5:00 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Robert Gilhooly	23868	950493	103 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Brandon Grasser	14283	955961	103 PCT
2. POM Finbarr Brennan	2434	955726	103 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Robert Gilhooly	Abuse: PO Roberty Gilhooly questioned § 87(2)(b)	A . Unsubstantiated

Case Summary

On October 6, 2014, at approximately 8:30 p.m. PO Brendan Grasser, PO Robert Gilhooly, and PO Finbarr Brennan observed a Nissan Maxima with tinted windows. They briefly lost sight of it, and then located it parked in front of 92-18 Guy R. Brewer Boulevard in Queens. § 87(2)(b) was standing five to ten feet away from the Nissan Maxima, talking on his cellphone. PO Gilhooly then asked § 87(2)(b) if the car was his, to which § 87(2)(b) replied that it was not. § 87(2)(b) alleged that PO Gilhooly then asked “What’s in your pockets?”+ **(Allegation A)** (encl. 4B). § 87(2)(b) then asked if he could leave, and he did. No arrest or summonses resulted from this incident.

Mediation, Civil and Criminal History

§ 87(2)(b) rejected mediation. As of February 23, 2015, a notice of claim inquiry for this case is pending. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- § 87(2)(b) has one prior complaint § 87(2)(b)
- PO Robert Gilhooly has been a member of the service for 3 years. He has one prior case that was mediated (encl. 2A). § 87(2)(g)

Findings and Recommendations

Allegation A—Abuse of Authority: PO Robert Gilhooly questioned § 87(2)(b)

It is undisputed that § 87(2)(b) was asked if he was the driver of the Nissan Maxima the officers had earlier observed driving with tinted windows. Once it was established that he was not the driver, § 87(2)(b) alleged that PO Gilhooly asked him, “What’s in your pockets (encl. 4B). PO Gilhooly denied questioning § 87(2)(b) about the contents of his pockets (encl. 5D). PO Grasser’s and PO Brennan’s testimonies align with PO Gilhooly’s (encl. 5L and 5H). § 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as **unsubstantiated**.

Team: _____

Investigator: _____
Signature _____ Print _____ Date _____

Supervisor: _____
Title/Signature _____ Print _____ Date _____

Reviewer: _____
Title/Signature _____ Print _____ Date _____

Reviewer: _____

Title/Signature

Print

Date